

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND THE
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
COACHELLA VALLEY UNIFIED SCHOOL DISTRICT**

In the Matter of the Proceeding to Dismiss:

ULISES SANCHEZ-JIMENEZ, Respondent

OAH No. 2025030216

DECISION

This matter came on regularly for hearing before the Commission on Professional Competence (Commission) on May 1, 2, 5, 6, 2025, in Thermal, California. The Commission was comprised of the following members: Administrative Law Judge Mary Agnes Matyszewski, Kate Keener, and Amar Samet.

Victor King and Denise Wong, Attorneys at Law, Olivarez Maduga Law Organization LLP, represented complainant, Sumer Martinez, Director of Certificated Human Resources, Coachella Valley Unified School District (district).

Jon Vanderpool, Attorney at Law, Vanderpool Griffith LLP, represented respondent, Ulises Sanchez-Jimenez, who was present.

On May 6, 2024, the Commission met to deliberate. On May 7, 2025, the record was closed, and the matter was submitted for decision.

CASE SUMMARY

Respondent's interactions with a female high school student enrolled in his mathematics class during the 2023-2024 school year formed the bases of the allegations. This student testified in this hearing. The district also alleged inappropriate conduct involving other students, but none of them testified, and their written statements and summaries of their interviews were hearsay, not supplemented or explained by other evidence, so no findings regarding those students can be made. As such, only the allegations regarding the one female student and respondent's statements to the district about her were considered by the Commission.

Having considered the admissible evidence, two Commission members determined respondent engaged in immoral conduct and was evidently unfit for service. The Commission did not find respondent was dishonest. Two Commission members voted to dismiss respondent from service in the district; one voted against dismissal. As these matters are determined by majority vote, the district's decision to dismiss respondent shall be granted and respondent's appeal is denied.

PROTECTIVE ORDERS

A protective order has been issued sealing the exhibit identified in that order. It is not practical to redact that document. This sealing order governs the release of the document to the public. A reviewing court, parties to this matter, their attorneys, the California Commission on Teacher Credentialing, its attorneys, or designee, and a government agency decision maker or designee under Government Code section 11517, may review the document subject to this order, provided that such document is protected from release to the public.

In lieu of the students' names, initials will be used in this decision and will be used in any transcript of the hearing if one is prepared.

FINDINGS OF FACT

Jurisdictional Matters

1. Respondent was employed by the district as a mathematics teacher. During the time of the alleged incidents, he was teaching at Desert Mirage High School.

2. On February 20, 2024, G.C., a student in respondent's third period mathematics class, notified a teacher and then administration, of what she considered to be inappropriate behavior by respondent that occurred on February 16, 2024, and again on February 20, 2024.

3. On February 20, 2024, Maria McLeod, Interim Assistant Superintendent of Human Resources, advised respondent the district was placing him on paid administrative leave so it could conduct a preliminary investigation into allegations of misconduct.

4. Following that investigation, Monica Makiewicz, Ph.D., the district's Assistant Superintendent of Human Resources, notified respondent via letter on December 18, 2024, of the district's intent to dismiss him from employment. She

notified him of his right to a *Skelly*¹ meeting before the district moved forward with the proposed discipline. Dr. Makiewicz enclosed the Statement of Charges and a Request for a *Skelly* meeting form.

5. On January 13, 2025, respondent provided the district with his “Response to Draft Charges” in which he responded to the charges “in lieu” of attending a *Skelly* meeting. The next day respondent sent a Revised Response to Draft Charges adding additional information. Respondent testified he wanted to provide a written response rather than attend the *Skelly* meeting because the district’s charges were very detailed and he wanted to provide details in response. He wrote a revised response to correct his bell schedule and add more facts about what took place on February 16, 2024.

6. On January 29, 2025, Robert Nichols, who served as the *Skelly* officer, issued his *Skelly* Decision finding the district had “reasonable grounds to proceed with the proposed discipline of dismissal.”

¹In *Skelly v. State Personnel Board* (1975) 15 Cal.3d 194, 215, the California Supreme Court held that in order to satisfy due process, an agency considering disciplinary action against a public employee must accord the employee certain “preremoval safeguards,” including “notice of the proposed action, the reasons therefor, a copy of the charges and materials upon which the action is based, and the right to respond, either orally or in writing, to the authority initially imposing discipline.” The Supreme Court’s directive gave rise to an administrative procedure known as a *Skelly* hearing, in which an employee has the opportunity to respond to the charges upon which the proposed discipline is based. In its documents, the district referred to it as a *Skelly* meeting, so that is what it will be called in this decision.

7. On January 31, 2025, Ms. Martinez sent respondent a final notice of the district's intent to recommend to the Board of Education (board) that he be dismissed. The notice referenced the applicable laws and district policies respondent was alleged to have violated, and attached the Final Statement of Charges (Statement of Charges). The charges referenced a 2019 incident which resulted in the district issuing a directive to respondent. The charges further alleged respondent was being dismissed pursuant to Education Code section 44932, subdivisions (a)(1), immoral conduct, (a)(4), dishonesty, and (a)(6), evident unfitness for service. The charges stemmed from allegations respondent engaged in inappropriate behavior with students, and was dishonest when interviewed about it.

8. On that same date, Ms. Martinez also sent respondent a letter providing him with Brown Act Notice advising of the date, time, and location, of the board meeting where the board would consider the charges against him and his dismissal.

9. On February 6, 2025, the board in closed session voted to dismiss respondent and directed the Superintendent or designee to send out the appropriate legal notices.

10. On February 7, 2025, respondent requested a hearing, and this hearing followed.

Respondent's Education and Background

11. Respondent was born in Mexico and came to United States in 2001 with his family. His parents worked in the agricultural fields, where he worked as well, including during holidays and summers. He began attending Coachella Valley High School in 2004 as a tenth grader. He did not speak English but successfully graduated in three years. He graduated from College of the Desert with an associate degree in

liberal arts, working part time to pay for school. He then attended University of California, Los Angeles (UCLA), graduating in two years with a Bachelor of Science in applied mathematics.

12. After graduating UCLA, respondent pursued a teaching career because he wanted to motivate students and “encourage them that with hard work and education their dreams could come true.” He testified it is something he strongly believes and wanted to instill in students. He had many teachers who mentored and motivated him to continue his education and he wanted to do the same. He got his teaching credential from California State University, San Bernardino. He has a single subject credential with an emphasis in mathematics. He applied to several school districts, and received numerous offers, but accepted an offer with this district because he wanted to teach in this community. He was first employed with the district at a middle school during the 2011-2012 school year. He became a permanent teacher during his third year with the district. He worked at the middle school for 11 years, where he received good performance evaluations.

13. Respondent testified that each year he is trying to improve as an educator and feels he is doing better every year. His evaluations are in the meets or exceeds standards ranges. He has taught approximately 2,500 students in his career.

14. During the 2023-2024 school year, as in prior years, some of the high school mathematics classes he taught were for students who needed to repeat the course, which was a course required for graduation. The third period class he was teaching where the alleged incident with G.C. occurred was one such repeat course.

15. Respondent asserted that he is fit to resume teaching. He considers himself a hard-working, dedicated teacher, and his evaluations prove it. He has had

good evaluations and good communications with his many principals and students. He is "committed to inspire the students of my community, this community, to inspire my students to continue with their education so they can reach their goals."

MIRS Motion

16. Effective February 7, 2025, the district placed respondent on unpaid leave. In response thereto, on March 3, 2025, respondent filed a Motion for Immediate Reversal of Suspension (MIRS Motion) at the Office of Administrative Hearings (OAH). OAH issued an Order setting the matter for oral argument on March 28, 2025, and establishing a briefing schedule. The district opposed the motion, and respondent filed a reply to the district's opposition.

17. Education Code section 44939, subdivision (b), permits a school district to immediately suspend a permanent employee of the school district who has been charged with immoral conduct. Education Code section 44939, subdivision (c)(1), permits the employee to file a MIRS motion. The administrative law judge's review of the suspended employee's motion is "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

18. On April 4, 2025, after considering the pleadings, the written submissions, and oral argument, and having researched the issues, the administrative law judge hearing the MIRS motion determined the district had alleged facts which, if true, were sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b), and denied the motion.

19. Complainant repeatedly referenced that Order at hearing, but that finding is not controlling here. In a MIRS proceeding, unlike in this hearing, the

underlying evidence on which the district relies is not presented nor considered; the Order issued following a MIRS motion is based solely on the pleadings. This is unlike in the hearing where the Commission considers the evidence at issue. Thus, the ruling on a MIRS motion is irrelevant for deciding discipline and is not binding on the Commission, although it can be used for determining back pay should the Commission vote to reinstate the employee.

Motion in Limine re: 2019 Directive

20. Respondent opposed the introduction of any evidence regarding the 2019 directive because it violated the four year rule regarding the introduction of evidence in these matters. (Ed. Code section § 44944, subd. (b)(2)(A).) That motion was denied in part because regularly kept records of the district may be introduced, although no findings can be based thereon (Ed. Code section § 44944, subd. (b)(2)(B).) Additionally, the evidence was allowed to the extent it placed respondent on notice regarding applicable board policies with which he must comply.

Evidence Introduced at Hearing

21. Several witnesses testified and numerous documents were introduced. The factual findings reached herein are based on that evidence.

DISTRICT'S INVESTIGATION

22. Conflicting testimony regarding the district's investigation was offered. Principal Elizabeth Sotelo and Assistant Principal Aven Magana each testified they interviewed G.C. on February 20, 2024, with Assistant Principal Magana taking notes. Both administrators claimed they did no further investigation and passed the matter on to the district's human resources department given the nature of the allegations.

Both denied interviewing students at Desert Mirage High School and claimed Ms. McLeod performed the investigation.

23. However, Ms. McLeod testified she did not conduct an investigation into the allegations. Although Dr. Makiewicz also testified Ms. McLeod performed the investigation, Ms. McLeod testified she did not, and claimed she sent the matter to district counsel. Dr. Makiewicz further testified the students' statements were written on Desert Mirage High School forms indicating the administrators at the high school interviewed the students, but those two administrators, Principal Sotelo and Assistant Principal Magana, denied doing any of the investigation.

24. As such, it was never established who performed the investigation.

25. G.C. was interviewed on May 23, 2024, and again on October 15, 2024, and gave statements consistent with her testimony summarized below.

ALLEGATIONS THAT CANNOT BE SUSTAINED

26. Four of the district's ten allegations (Nos. 3, 4, 5, and 8), and parts of three other allegations (Nos. 6, 7, and 9) involved statements made by other students, none of whom testified. Their statements did not overcome any hearsay exceptions, did not supplement or explain other admissible evidence, and as a result, cannot be considered. Thus, the charges pertaining to those students were not established and are dismissed.

27. The only admissible evidence presented pertained to student G.C. and only those allegations can be considered. (Nos. 1, 2, and parts of 6, 7, and 9.) Allegation No. 10, regarding statements respondent allegedly made during his district interview, will also be evaluated in this decision.

2019 INCIDENT

28. A student and parent reported that on March 28, 2019, respondent grabbed the student by the ear to turn his head to face forward. Witness statements corroborated the student's claim. District representatives met with respondent who stated the student was off task and after multiple warnings, respondent tapped the student on the shoulder. As the student turned to face respondent, respondent may have touched him on the ear.

29. The district concluded that respondent's actions violated Board Policy 4119.21, "Professional Standards." That policy requires all employee's "to maintain the highest ethical standards, exhibit professional behavior, follow district policies and regulations, and abide by state and federal laws." In 2019, in addition to violating professional standards, the district advised respondent that his behavior also created a hostile environment for students and made the reporting student feel uncomfortable and threatened.

30. The district issued the following directive to respondent: "When correcting student behavior, do not make adverse contact with the student. Do not pull any student's hair or lay hand's [*sic*] on students in anger or in a disciplinary manner." Respondent was advised that failure to comply with this directive "would result in further progressive disciplinary consequences." Respondent was also advised to refer to the board policy found on the district website.

31. Accordingly, in 2019 respondent was specifically placed on notice about Board Policy 4119.21. The Statement of Charges at issue in this matter, in addition to alleging other violations, also alleged that respondent's behavior violated Board Policy 4119.21. Although no findings will be made regarding the 2019 incident, it was

considered solely for the fact that respondent was specifically placed on notice of the existence of Board Policy 4119.21, and the professional standards the district expected of its employees.

EVIDENCE RE: ALLEGATION NO. 1 (FEBRUARY 16, 2024, INCIDENT)

32. The district alleged that on February 16, 2024, respondent instructed G.C. to stay after class to make up a missed exam, although several other students also needed to make up the exam. Despite G.C. telling respondent she had to go to her next class, respondent closed the door and insisted she stay to retake the exam. Respondent made her sit next to his desk and stared at her, making her feel uncomfortable. At one point he took her phone without permission and began scrolling through it. He left the classroom and when he returned, G.C. had her head down on the desk, and respondent began to stroke and play with her hair. Respondent leaned over G.C., put his left arm around her, grabbing her hand, and rubbed his arm against her breast. At some point, G.C. texted a friend about respondent making her uncomfortable.

G.C.'s Testimony

33. G.C. testified that during the 2023-2024 school year, respondent was very physical towards her, casually touching her shoulder, and touching her belongings without her permission. He made unwanted comments towards her. In that year, G.C. was on Bell Schedule B, which meant she had respondent for third period math that ended at 9:50 a.m. and then had her fourth period class before going to lunch.

34. On February 16, 2024, there were several students who had not completed the exam, but respondent told only G.C. to stay after class to complete it. She told him she had a friend waiting to meet her after class but he would not let her

leave. She told him several times that she had to go but he made her stay. Respondent told her, "You're staying," and got up and closed the door and told her to sit next to him by his desk. G.C. had a fourth period class she had to get to, and told respondent about the class and meeting her friend, but he would not let her leave.

35. G.C. testified it was "strange to be in a room alone with a male teacher." G.C. sat down next to respondent as instructed and he put the paper next to her and sat down at the desk. He continued to stare at G.C. the entire time. She took out her cell phone to text her friend that she could not meet him and that respondent was making her uncomfortable.

36. G.C.'s February 16, 2024, text message at 9:50 a.m. with the friend she was supposed to meet after respondent's class documented the following exchange:

Friend: where u at

G.C.: teacher made me stay after class

G.C.: [redacted] creeping me out

Friend: omg

Friend: i'm here

G.C.: Here where

Friend: [sent a photo of his location]

G.C.: I'm so sorry I was telling him about a had to go

G.C.: he doesn't want me to

Friend: it's ok dw [two emoji crying faces]

G.C.: It's js me n him alone I'm getting creeped out [three emoji skulls]

Friend: ohm (acronym not explained)

37. G.C. described how while she was in the classroom, respondent kept staring at her in a "very intense, very intimidating" manner. After she texted her friend, respondent stood up and grabbed her phone and started scrolling through it for "a long time" but did not explain why he was doing so. He put Google classroom on her phone, told her, "Use this," and put her phone on the desk. G.C. never told respondent she needed help or could not find the Google classroom on her phone.

38. G.C. started texting her then boyfriend that respondent was being weird, touching her stuff, and she was getting "a very weird vibe from him." Her boyfriend texted back for her get out of the classroom or talk to security. G.C. no longer has those text messages because she and her boyfriend later broke up, and she deleted their texts.

39. At one point while she was there, respondent went outside the classroom to tell students who were making noise to quiet down. He came back to the classroom and again closed the door. He came towards G.C., squatted down next to her and put his left arm under her right armpit. With his right arm he grabbed her right hand that was holding her pencil and acted as though he was writing. With his left elbow/shoulder, respondent began rubbing the right side of G.C.'s right breast. She was very nervous, but said nothing because she was "in shock." After respondent stood up from his squatting position, G.C. put her head down. Respondent stroked her hair,

patting her head. She believes he said, "Don't go to sleep on me" while he was stroking her hair. Respondent then "got bored," and told her she could leave.

Respondent's Testimony

40. Respondent denied that the incident took place. Further, he denied keeping G.C. after class. He testified she came to his class after school to make up her exam. It was the end of the day, he was done with classes, and she showed up and told him she was there to make up the test. Respondent had noticed during class she understood the concepts so had asked her about making up her missed exam, and she did so at the end of the day. He acknowledged that during the 2024-2024 school year, he had Bell Schedule A, so had lunch after his third period class.

41. Respondent has no explanation for the 9:50 a.m. text message but denied that G.C. was in his class during that time. He did not know if that text refers to him but those text messages were not sent from his classroom because he did not have G.C. stay after her third period class. She left when class ended at 9:50 a.m., and did not return to make up the test until the end of the day.

42. Respondent further testified that when G.C. arrived at his class at the end of the day, his door was open. She told him she was there to "retake the quiz." He was at his desk and she went to her desk. He stood up and went to her desk to give her the paper quiz which had five problems on it. He handed her the paper and told her she could use her Google classroom notes. She had her iPad but it was not charged so she was going to use her phone. Respondent returned to his desk and was working on his computer.

43. Students started making noise outside the classroom and G.C. told him she was going to close the door because she could not concentrate as it was too

noisy, and she closed the door. He then stood up and went to check and see what was going on outside. When he opened the door he found a female student leaning on the classroom wall and he asked if she wanted anything. That student said she was waiting for G.C. and he asked if she wanted to come inside to wait. She said she had somewhere to go and she left. His classroom door closed behind him when he went to speak with that student. When he returned to the classroom, he went back to his desk.

44. The door was shut which he was okay with because he was concerned that it was too noisy outside for G.C. to concentrate on the test. Respondent does not recall ever being alone with a student in his classroom. He has had students return to take tests when it is not their class period.

45. Respondent observed G.C. scrolling through her phone. He assumed she needed some assistance so he stood up and went to her desk. He saw that she was not in Google notes, which he had told her to use. He asked G.C. to let him help her find the notes and "I believe I got the phone." He clicked on Google classroom, and found the notes he wanted her to use which he showed her.

46. Respondent admitted saying, "Let me help you" and that he did not wait for an answer, but instead picked up G.C.'s phone and scrolled to Google classroom. He denied scrolling through G.C.'s phone for several minutes. After showing her the Google notes, he returned to his desk while she continued working on the test.

47. At some point, he observed G.C. was texting so he stood up and went to her desk but by the time he got there she was in the Google notes again. He told her to please make sure to use those notes and not get distracted. He was concerned she was cheating.

48. Respondent denied staring at G.C. He admitted that "every once in a while" he would turn around and supervise what she was doing. The last time he went to her desk was when he noticed she had her head down. Her hair was covering part of the desk. Respondent called her name as he walked towards her. He asked if she was okay several times, but did not get a response. He tapped on the desk and asked if she was okay. He did not get a response. He tapped G.C. on the shoulder and asked if she was okay. He did not get a response. One more time he asked if she was okay and again, got no response. "All of a sudden she lifted her head up with a look of surprise" on her face. She looked "in shock."

49. Respondent asked if she was okay because he was afraid something had happened to G.C. She said she was asleep. She told him she needed to go, but he told her that she was almost done with the test so why not just finish it. He didn't understand why she wanted to leave when she was almost done with the test. She said she really needed to go and he told her that was fine just to study and then do the last question another time. G.C. left his classroom, he took her test and put it in his pile of uncompleted tests that he maintains for his students.

50. Respondent denied squatting down next to G.C., claiming he does not squat down next to students when checking their work. However, later when his attorney asked him to demonstrate how he checks students' work, respondent squatted down, testifying he sometimes squats down next to a student's desk.

51. Respondent acknowledged he may have touched G.C.'s hair when he was tapping on the desk because her hair was covering the desk. He denied stroking her hair. He denied putting his arm around her. He denied touching her hand. He denied staring at her breasts. Respondent said "none [of that] happened at all."

52. Respondent testified that the “most notable mistake” he made was being alone in his classroom with G.C., and he apologized for that. He described G.C. as a poor student who was absent a lot. He had sent an email to her and her parents advising that her “D” grade put her in danger of failing the course so she needed to put more effort into it. He did not get a reply to his email.

53. February 16, 2024, was a Friday. Monday, February 19, 2024, was a school holiday. School resumed on Tuesday, February 20, 2024, which was when G.C. next encountered respondent.

EVIDENCE RE: ALLEGATION NO. 2 (FEBRUARY 20, 2024, INCIDENT)

54. The district alleged that on February 20, 2024, as G.C. was entering respondent’s class, he screamed and tried to scare her, making her visibly upset. Respondent stared at her chest, and continued to make her feel uncomfortable during class. After class, she reported his behavior to her fourth period teacher, who sent her to the principal’s office.

G.C.’s Testimony

55. G.C. testified that as she was entering respondent’s classroom, he acted like he was going to physically hit her or jump on her, and yelled “Ahh!” She screamed, “Don’t do it.” Respondent was laughing but “I was so scared of him,” which G.C. told him. During the entire class, respondent was attentive towards G.C., repeatedly asking if she was okay. G.C. was on the “brink of tears” the entire time she was in class.

Respondent’s Testimony

56. Respondent admitted he will say “Woo” to students with his arms up because “I am being silly, I admit it.” Students will laugh when he does it, “the idea is

humor." As a result of this matter, respondent regrets doing this and making jokes in his classroom because some students perceive jokes differently than others so "I need to be more careful with that."

57. On February 20, 2024, G.C. was late to class and respondent's door was already closed and locked per district safety protocols. Respondent had to go to the door to let G.C. into class. He opened the door and said, "Woo." G.C. got scared and said, "Oh my God," and "rocked back." Before that, respondent was laughing and he was expecting G.C. to laugh. He did not expect her to get scared. He told her he was sorry, that it was not his intention to really scare her, he was just being silly.

58. As G.C. was walking to her desk, there was no reaction from other students because they were working on the warm-up problems which he puts on the board for students to do at the start of class. Respondent then continued teaching his lesson.

59. During the class, respondent remembered "something unusual as I was checking for [student] understanding." Respondent had a problem on the board and was walking around checking for student understanding of the problem/concept and by the time he got to G.C. to check her understanding, "she goes to her blouse and brings the sleeves of the blouse down, [first] one, and then the other and then was smiling." G.C. moved the sleeves of her blouse down below her shoulders. Respondent was surprised but did not say anything. He felt G.C. was "provoking me, I felt very uncomfortable."

60. Respondent testified that this was the first time a student had ever acted this way towards him and it was a "shocking event." He does not know why he did not

report it or disclose it to Ms. MacLeod when interviewed. However, he did not associate that incident with the reason he was being interviewed by Ms. McLeod.

Tyler Sampson's Testimony

61. After respondent's third period mathematics class, G.C. went to her next class, a music class with Tyler Sampson. When she got there, she started crying and asked Mr. Sampson if she could "talk to him in private about something important." She then reported to Mr. Sampson that respondent was acting very weird, being physical, and was scaring her. Mr. Sampson got up immediately, called the principal's office, and told G.C. to report there.

62. Mr. Sampson wrote a statement on February 20, 2024, during his lunch break, which was consistent with his testimony. He wrote, as written in original:

Around 10:00 am on Tuesday February 20, 2024, [G.C.] came to me and asked to see a counselor. Upon returning she came to me crying and told me a teacher at desert mirage was making her uncomfortable by asking her to stay after class. Upon asking her why, she told me he would stare at her chest and inappropriately touch her, including playing with her hair and make her uncomfortable overall. When asked what teacher. She hesitated, stating she was worried about retaliation if it came out that she talked. I reassured her that wouldn't happen. She then told me it was [respondent] in room H2-128. At which point I tried to make contact with multiple parties that she might talk to, ultimately sending her to talk with Principal Sotelo, of

Desert Mirage High School. Which she left to go talk to her around 10:15-10:20 am.

Afterwards, I went to contact the thermal [sic] Sheriff's Department but decided it best to wait until the end of the period so I didn't have to risk prying ears hearing the conversation. Discretion for the student in question. I contacted them successfully around 10:47 am and followed the procedure with them.

63. Mr. Sampson taught guitar during the 2023-2024 school year. He has had sexual harassment prevention and mandated reporter training as part of his professional trainings. His impression of G.C. was that she was quiet, reserved, not a perfect or ideal student, she missed a lot of class, and did not do a lot of the work, but she was not disruptive and never caused any issues.

64. On February 20, 2024, G.C. came to class "a little quieter than normal." While Mr. Sampson was behind his desk, G.C. came up to him and wanted to have a discussion. He noticed she was in "visual distress" so he pulled her aside and asked what she wanted to talk about. She reported a teacher was acting inappropriately with her, had asked her to stay after class, and would do inappropriate things to her including touching her hair and making "sweet talk" to her. G.C. seemed "shaken, kind of closed off, had her hand on her arm, was often looking down, and had a shaky voice while talking" to Mr. Sampson. She was "visibly distressed."

65. After speaking with G.C. and sending her to the office, Mr. Sampson made sure that he recorded the encounter and notified police because he is a mandated reporter. He was "very paranoid about messing it up," so took steps to

make sure he reported all to the proper authorities. He had a follow-up interview with police at the principal's office and a district interview.

66. Mr. Sampson could not recall whether G.C. missed his class on February 16, 2024, but G.C. missing classes was "not unusual." Of note, no school attendance records were offered by the district.

67. Mr. Sampson testified that this incident brought negative publicity to the school and impaired student/teacher relationships. It also disrupted his instructional day as he had to take time to address and report it.

G.C.'s Additional Testimony

68. On her way to the office, G.C. ran into a friend in the hall. G.C. was crying and told her friend everything and why she was going to the office. Her friend told her to tell the principal everything and "hopefully they could do something about it."

69. G.C. told Principal Sotelo what was going on and after speaking with the principal, G.C. was asked to write all of it down. The principal and the counselor both watched G.C. write her statement. G.C. told the principal that respondent touched her breast, which he did, even though she wrote in her statement that he "almost" touched it. In fact, while speaking with the principal, G.C. demonstrated how respondent rubbed the side of her breast.

Administrators' Testimony

70. Principal Sotelo received Mr. Sampson's call because she happened to be in her office when he called, often she is out on campus. Mr. Sampson reported that he had a student who was crying that the principal needed to see and disclosed what she had told him which made Principal Sotelo "very concerned about [G.C]."

71. When G.C. arrived at her office, she was crying. She reported that respondent made her stay after class when she was supposed to go to Mr. Sampson's class but he "forced her to stay" and make up a test. She reported this happened the prior Friday [February 16, 2024]. Other students also missed the test but she was the only one he told to stay. Respondent had initially asked her several times to stay after school and she told him she could not, so he told her to stay after class. G.C. felt forced, she felt she had to stay, and she was missing Mr. Sampson's class.

72. Respondent closed both classroom doors which made her uncomfortable. G.C. was crying as she told Principal Sotelo what took place. Principal Sotelo then asked Assistant Principal Magana to join them so that the assistant principal could write notes and the principal could focus on what G.C. was saying.

73. G.C. said at one point respondent stepped out of the class and G.C. put her head on the desk. When he came back to the classroom, respondent began touching her hair. He said, "Do not be sleeping on me." G.C. said she had not fallen asleep, she was taking her test. G.C. then described how respondent squatted next to her, put his left hand next to her chest which made her really uncomfortable and grabbed her right hand with his right hand to start writing on her test. The whole time he was looking at her chest and his hand was touching the right side of her breast.

74. Principal Sotelo asked G.C. to demonstrate how respondent touched her because G.C. was "crying and I could not understand her." G.C. then demonstrated what respondent had done. G.C. reported that respondent moved his hand up the right side of her breast and touched her. He was also staring at her chest when he was holding her right hand. He continued to stare at her chest even when he returned to his desk. G.C. also described other occasions in class when respondent came close to her and was looking at her chest.

75. G.C. also reported that she had pulled her phone out to access Google, which she was allowed to do for the test, but respondent took her phone which “shocked” her. He started scrolling through it to a point he wanted G.C. to see on the Google notes. Respondent was also staring at her, making her very uncomfortable. She continued to tell him she needed to go to her next class. She did not want to be there. Eventually he told her she could go because he had “to go to the restroom anyway.”

76. G.C. next described the incident that took place on February 20, 2024. Respondent tried to scare her which made her shaken. He then said, “You are afraid of me.” That behavior is what “triggered her to say something.”

77. Principal Sotelo described G.C.’s misdemeanor as being very emotional and looking shocked. She was crying, shaking, “crying a lot,” and Principal Sotelo was “having a hard time trying to put the story together which is why I brought Assistant Principal Magana in so I could focus” on what G.C. was saying.

78. G.C. reported feeling very uncomfortable in respondent’s class, and she did not want to be in it anymore. She felt targeted. She reported he would come close to her during class, he would look at her chest, and now that he had touched her hair and her chest, and grabbed her hand, she was very upset. G.C. “looked really shocked.”

79. Assistant Principal Magana received a call to come take notes at the principal’s office. The principal and G.C. were sitting at the table, G.C. looked “very upset” and was crying, but Assistant Principal Magana did not know why. She sat down and began taking notes. Assistant Principal Magana’s testimony about what G.C. reported was consistent with Principal Sotelo’s testimony about what G.C. reported, especially that respondent touched her breast when he put his hand under her arm.

G.C. reported she “was afraid” and “just froze” when that happened. Assistant Principal Magana recalls G.C. saying respondent called her “pretty.”

80. Assistant Principal Magana turned her notes over to human resources for its investigation, and does not know what happened to them. Respondent indicated they were never produced in discovery.

81. Principal Sotelo said it is unusual for a teacher to have a student stay behind and miss the student’s next class. In such circumstances, the teacher will reach out to the next period teacher, but that did not occur. Also, it is recommended that teachers always keep their doors open and never be alone with students.

82. Principal Sotelo left G.C. with Assistant Principal Magana who had her write a statement. Per district protocol, Principal Sotelo contacted Ms. McLeod and informed her what had happened. She also told Ms. McLeod she would send her an email with the information including G.C.’s statement, which she did.

83. In her email to Ms. McLeod, Principal Sotelo provided “a quick draft of notes that were taken while student [G.C.] was sharing this information with me and [Assistant Principal] Magana in my office.” Principal Sotelo wrote, as written in original:

[Respondent] math joke around - random stuff didn’t see as anything bad. Target me for answers

On Friday last week, 2/16 test due.. late and on her about making up the test missed but after class

She said no I cant after school have something to do.

He said no you're staying and closed the door. Sit her right next to his desk. Wasn't saying much but looking at her

She pulled out phone and then

He stood up grabbed phone and scrolled randomly and told her to use this for the test on Google classroom. Use class notes. He left too. For 5 minutes and she put her head down

He came back and stroked her hair with her head down. He told her to wake up don't want you sleeping on Me.

Then he came to her and wrapped left arm around hers arm and took pen with right hand and wrote. Left hand wrapped around was close to her chest got close to her then sat in front of her staring at her.

She kept saying I really have to go then he let her go late to Sampsons class

Today he screamed at her and said you're scared of me. She said don't scream at me it scares me. He tried to joke.

He then kept walking by my desk staring at my chest.

84. Principal Sotelo described the annual trainings teachers undergo, including trainings regarding mandated reporting, preventing sexual harassment, and proper student/teacher interactions. She also described the training she has undergone regarding investigating allegations and ensuring a fair process.

G.C.'s Written Statement

85. In her written statement, which she prepared at Principal Sotelo's suggestion, in which she wrote 10:45 on both the date and time lines, G.C.'s wrote, as written in original:

Feb, 16, there was this test that I had to due that was due long time ago that he kept insisting that I had to do it after class and I kept saying no I have something to do I really have to go by said no multiple times but he kept saying no that he wants me to stay their was multiple kids that haven't finished be he didn't say nothing to them only need and he stood up and close both doors and told me to sit down right their basically next to his desk so I sat down and took my test and each time I turned around he would be staring at me I felt very uncomtable and I took my phone out and I was gonna go to class notes to help me but he stood up and took my phone away and started scrolling trough it and then went to google classroom and put the class notes without my permission I was just like what the fu** is going on and he told me use that I was like okay so I was using it he got out of the class room cor about smth and I put my head down cuz I was so bored and he came and started stroking my hair and play with it I put my head put really quick and he told me don't fall asleep on me coninte with the test and I was just looking at it and he came to me and put his arm around mine amost touching my tit his should

was the like he kept lenning on the holding my hand Also and I saw he was looking at my chest a lot I was getting really weird out and he stood up in front of my desk and bended down whirling looking at me do my past and I looked at him and he said continute doing it and I told him you know what I really have to go and he said no and I conitnted saying I have to get to class and he like okay go I have noted the restroom anyway so I left and I went to guitar.

February 20, I was on my way to class he was waiting by the door and when I was gonna go in he screamed at me and acted like he was going to atack me and I got scared and I jumped he stared laughing at me saying your scared of me and I told him not to scare me I really felt like crying, and then every thing I did like say I was okay like if I make the smallest noise he would say if I am okay and would pass alot next to my desk and sometimes just stand their and I looked up and notice he was looking at my test the whole I was really really uncomfortable I could wait to get outa class I can't foces at all in their I can't fouces in any of my classes to be honest and when I noticed he was looking at my chest I really felt like crying I hold my tears and I couldn't hold them for long and I told my guitar teacher about it I told him can I tell you something I told him thar this teacher that forcerly makes me stay after class and I

stared sobbing on him I couldn't hold it back and I told him
if I could talk with someone

I don't remember the date exactly but it when I stared
noticed this wasn't right it's when I had these really nice
pure of gloves on my hand and he came holded my hand
took my gloves off and he stared wearing them with saying
anything then came back saying these are for girls I on want
them he does this a lot like gets thing without permission
like my iPad my notebook my food or drinks.

86. After reporting the incident, G.C. was transferred out of respondent's mathematics class. However, she later stopped going to school because she was scared to see respondent. She was very anxious, had anxiety attacks, and did not want to see anyone anymore.

87. Principal Sotelo contacted G.C.'s mother to report the incident. Given how shaken up G.C. was by it, her mother requested G.C. be enrolled in independent study, which she was. G.C. has not returned to the high school since these incidents.

88. Principal Sotelo testified these incidents have had a negative impact on both her and the school. It is her responsibility to keep students safe and ensure that parents feel their children are safe at school. She is concerned there will be a recurrence of respondent's behavior if he is allowed to return and these incidents have impaired relationships between teachers and students. Dr. Makiewicz also testified these incidents brought negative publicity to the school.

G.C.'s and Respondent's Testimony About Restaurant

89. G.C. has seen respondent in the community, at stores "a lot." Each time he looks at her "with so much hatred like he wants to strangle me." Respondent and her family also encountered him at a local restaurant. G.C. did not see respondent until she was seated but ignored him as she did not want to make a scene. After he left, she told her family he was the teacher involved in her matter and her mother said that explained why respondent was looking at G.C. "very strangely."

90. Respondent testified that he and his mother were at a restaurant before going to church when G.C. and her family entered. He noticed them because the restaurant was fairly empty but the family came and sat at a table right next to him and his mother. He recalls at some point G.C.'s mother had her phone out and he could not tell if she was texting or filming and G.C.'s family members were staring at him. He and his mom left about 10 to 15 minutes after G.C.'s family arrived.

EVIDENCE REGARDING ADMISSIBLE PART OF ALLEGATION NO. 6

91. The district alleged that respondent once called G.C. a "little calientita" after observing G.C. kiss her then boyfriend. The district alleged this translates to "little hot babe."

92. G.C. testified that she was kissing her boyfriend goodbye before entering respondent's classroom and in Spanish he called her "calientita," which translates to "very horny," an expression used to call someone very horny. G.C. was stunned, but ignored the comment and "did not put much thought into it."

93. Respondent denied making that statement, but did recall saying, "Don't get hickies" to a student.

EVIDENCE REGARDING ADMISSIBLE PART OF ALLEGATION No. 7

94. The district alleged that during the 2023-2024 school year, G.C. had a pair of gloves on during respondent's class. Respondent held G.C.'s hand, took her gloves off, then put the gloves on himself. During the 2023-2024 school year, respondent took G.C.'s belongings without her permission on multiple occasions.

95. G.C. testified that her then boyfriend had given her a pair of black gloves as a gift. She was wearing them when respondent grabbed her wrist without her permission, took the gloves away from her, and began wearing them in his classroom. This took place in front of the other students in the class. Respondent continued teaching the class while wearing G.C.'s gloves. Respondent gave the gloves back at the end of class but G.C. was "really, really mad he took them away."

96. G.C. testified that respondent took her iPad and cell phone without her permission on several occasions. She denied that he ever took her purse.

97. Respondent denied taking G.C.'s gloves. He did not deny he took G.C.'s iPad and cell phone.

EVIDENCE REGARDING ADMISSIBLE PART OF ALLEGATION No. 9

98. The district alleged that respondent asked G.C. to stay after class, during lunch, or after school, to makeup tests and/or assignments.

99. G.C. testified respondent made her stay after class. Respondent denied keeping G.C. after class, but acknowledged that students did come into his classroom during his lunch and after school to make up work.

EVIDENCE REGARDING ALLEGATION NO. 10

100. The district alleged respondent was dishonest when interviewed by Ms. McLeod because he denied touching and/or smelling G.C.'s hair or making improper jokes. He denied keeping students alone in his classroom, claiming he had two or more students stay at a time in his classroom.

101. Ms. McLeod testified about her interview of respondent and the notes she took during that interview were introduced. Respondent initially said he never kept students in class, then later said he might have kept some students in class. At first he was adamant he had not done so and then admitted maybe he had. His answers were not consistent. However, Ms. McLeod wrote in her notes: "don't remember only one student," and that respondent asked for information regarding the students making the allegations but she did not provide that information to him.

102. Respondent also told Ms. McLeod that he thought the student was lying when she asked him if he kept a student after class or touched a student. Respondent could not recall if he smelled a student's hair. He said the student was lying when Ms. McLeod asked if he ever touched a student's hair.

103. Ms. McLeod felt respondent was not being honest during the interview. She felt he was not truthful when answering questions, and at one point during the interview the union representative present said "that was enough," and the interview ended.

104. Respondent denied lying when interviewed. He was told about the allegations and said the students were lying. He asked for the specific names and class periods of when the incidents allegedly took place, and Ms. McLeod would not provide

that information to him. He was trying to explain to her the options his students had when choosing to complete missing work and she found that “contradictory.”

105. Respondent explained that when asked if he ever had a student alone in his classroom he told Ms. McLeod that he could not recall ever doing that and she interpreted that to mean he was lying. He explained that when he was interviewed, he could not recall ever having a student alone and he was not told who made that claim.

***SKELLY* MEETING EVIDENCE**

106. Mr. Nichols served as the *Skelly* officer, testifying he never had any official training. This was the first time he ever did a *Skelly* meeting for a certificated employee, he had done ones for classified employees. He reviewed the district’s file and agreed with the district’s decision. At hearing, he had “a hard time remembering” most of the statements he reviewed given how “long ago” he reviewed them. He did recall G.C. claimed respondent touched her breast which respondent denied. He did not recall there being a discrepancy between G.C.’s written statement that respondent “almost touched” her breast and her oral claims he touched it. He did not review Ms. McLeod’s notes of her interview with respondent. Mr. Nichols never made a specific finding regarding dishonesty.

107. Respondent submitted written responses rather than attend the *Skelly* meeting. In his first response dated January 13, 2025, respondent began by acknowledging the time and process district personnel had taken to investigate the allegations. Respondent wrote, “I acknowledge that I am not perfect, can improve how I communicate and interact with students, and accept some measure of responsibility for poor efforts at humor and sarcasm. However, I respectfully object to a [*sic*] disagree with most of the allegations levied in the draft charges.” Respondent then

detailed his education and employment background, noting the high scores and improvements his students have achieved, including respondent receiving an acknowledgment when his "students scored on the top 10 highest from" the district on the benchmark tests administered.

108. Respondent acknowledged the 2019 incident. He wrote that since that time he has "been mindful of maintaining boundaries with students as to personal space, not touching (except, rarely, to redirect their attention for behavior such as a shoulder tap or nudge) and in communications with students, verbally and in writing." Respondent referenced a November 2021 closed head injury he suffered that caused concussion symptoms which eventually required brain surgery in January 2022, resulting in "episodes of disorientation and some memory lapses on-and-off." (No other facts about this injury were introduced.)

109. Respondent provided his bell schedule and described his classroom layout. He acknowledged walking around his classroom to check for student understanding and help students but he does "not violate students' personal space, meaning I do not get excessively close when helping them. I tap students on the shoulder and tell them 'good job, you got it, do you need help, you did a little mistake on this part of the problem', but am not 'touchy' nor inappropriate." Respondent next provided background information regarding each of the students referenced in the Statement of Charges. He noted that even though many of the students had different issues, he was committed to supporting and encouraging them to reach their potential and succeed. He "encouraged all my students to ask questions when they do not understand a concept, and I was always willing to support and explain the math each time they needed my help."

110. Respondent noted that the Statement of Charges only referenced “snippets of the students’ written statement and/or their interviews” with district personnel. He requested seeing the full statements and notes, pointing out that several of the statements “include positive comments about me that are not consistent with others’ allegations.”

111. Regarding G.C.’s allegations respondent wrote:

[G.C.] did stay after-school to make up a quiz in mid-February 2024. I remember telling [G.C.] to pay attention during class lecture about solving multistep equations by applying the distributive property, the quiz was on solving two-step equations. I noticed that [G.C.] solved the problems on solving multistep equations by applying the distributive property correctly. Seeing she was ready for the quiz, I asked [G.C.], when she was going to finish it. I offered her staying for my 4th period to finish the quiz. She said she had something to do during 4th period, but that she would come back to my classroom after-school to finish the quiz. I did not direct her to do so but was willing to accommodate her schedule.

112. Respondent wrote of his policy to allow students to make up quizzes during class time, during lunchtime, during a different class period with permission from that period’s teacher, or after school. Students must let him “know in advance” which option they do so he can “wait for them after class or during lunchtime.”

113. Respondent wrote that G.C. showed up at his classroom after school on February 16, 2024, and sat in her own desk. He told her she could use notes from Google classroom but noticed she was not finding the notes on her phone. He asked to assist her and showed her where to find the notes on her phone, giving her phone back to her and returning to his desk as she started the quiz. He monitored her to ensure she was not cheating but "did not stare as she claims." Respondent wrote, as written in original, that while he was at his desk:

12. . . . I noticed that she had her head down on her desk. I called out her name several times with no response, so I then approached her desk. I first tapped on the desk and may have touched her hair some since it was covering her desk. She didn't respond, so I tapped her shoulder calling her name. Still no response. All of the sudden, she lifts her head up quickly with a surprised look on her face. I asked: "are you okay, I thought that something happened to you; were you sleeping? Please don't fall asleep. She says she had to go. I responded that she was almost done with the test, with one more problem to go, why not just finish it now, and get it done. She insisted that she had to go, and I said fine, just study the word problem that you still need to finish. In retrospect, I should not have been alone with the student in my classroom. That was my mistake.

13. I didn't think much of her departure and to my knowledge she didn't complain or report any incident. But the next week, her behavior upon arriving to class was odd.

It was like she was trying to provoke me. I should've reported that sentiment to a site administrator.

[¶] . . . [¶]

I sincerely apologize for any of my actions/judgment that were perceived as inappropriate. I'm prepared to accept reasonable consequences, including a suspension of some material duration and undertake further training about classroom management and/or teacher-student boundaries.

I respectfully request the Board appreciate my years of dedicated service to this District, the foregoing facts, and my willingness to take proactive steps to improve how I communicate and interact with student [*sic*], and my contrition, to not impose the most severe forms of punishment -- a suspension of unlimited duration and termination of my employment.

An immediate suspension without pay and benefits would deprive me of the funding necessary to cover the cost of on-going medical care.

114. Respondent submitted a revised written statement the next day where he corrected his bell schedule and added the following to paragraph 12:

As G.C. entered the classroom, I left my classroom door open (the door that is inside the pod). She was about to

start the quiz when a student started to make noise by laughing and making noise right next to my classroom pod door. [G.C.] told me that she could not concentrate because of the noise from the pod. She stood up and closed the door. I went to the pod to see what was going on, opened the door, and I found a female student leaning on my classroom's wall next to the door. I asked the female student if she needed anything. She said no, she said that [G.C.] was her friend, and that she was waiting for [G.C.]. I then invited the female student to enter the classroom and wait for [G.C.] inside the classroom. The female student said that she had to go somewhere, and then she left. Then, I went to my desk and [G.C.] started the quiz.

115. Respondent submitted a third revised statement, dated April 2, 2025, but it did not revise paragraphs 12 or 13 any further.

Character Witness Testimony

116. Jose Angel is a math teacher in the district who has known respondent as a colleague since 2012. They initially worked together at the middle school before working together at Desert Mirage High School. Their classrooms are pretty close. Mr. Angel never saw or heard about respondent engaging in any inappropriate conduct with students. Respondent never did or said anything that was inappropriate or disrespectful during mathematics department meetings. Mr. Angel described how students often hang out in the classrooms during lunch but agreed it is not appropriate for a teacher to be alone with a student in the classroom or have the door closed. Touching students is also inappropriate.

117. Howard Pass is a special education teacher who has been employed with the district for 26 years. He provides mathematics support to students and did so in respondent's classroom approximately 15 minutes every day as he and respondent had different lunch schedules. Mr. Pass provided support in respondent's fourth period mathematics class. He never observed respondent doing anything inappropriate. Mr. Pass has an opportunity to observe many teachers and "learning was always happening" in respondent's class, something he does not always see in other classes. Because of the types of students Mr. Pass helps, there are times when he will be alone with a student with the door closed to keep the student's matter confidential. However, he agreed it is appropriate to keep boundaries with students and there is no reason for a teacher to place his arm around a student.

Respondent's Performance Evaluations and Email

118. An undated performance evaluation done when respondent worked at the middle school documented that he received meets or exceeds standards scores. He "has demonstrated knowledge of the content area and is consistent with the home/school communication." Respondent "supports his department team members above and beyond."

119. Principal Sotelo signed respondent's 2020 performance plan which is the document teachers review and prepare at the beginning of each school year. It requires them to review California teaching standards and document how they will meet those standards in their classrooms. It gives teachers an opportunity to reflect on the standards and how to meet them during the upcoming school year.

120. Principal Sotelo did the classroom observation for respondent's 2023 performance evaluation. She noted he used a variety of strategies to meet students'

diverse learning needs, promoted social development and responsibility within a caring community where each student was treated fairly and respectfully, organized his curriculum to facilitate student understanding, and addressed the needs of English learners and special needs students to provide equitable access to the course content. Principal Sotelo testified that during her observation, she did not see any behavior that concerned her regarding respondent's interaction with students.

121. Respondent's final teacher evaluation before these allegations were made also documented that he got meets or exceeds standards scores. He was commended for connecting with students, using a variety of strategies, promoting social development responsibility, organizing his content, and addressing the needs of all students.

122. A September 19, 2023, email from a University of California, Irvine, mathematics team thanked respondent for allowing them to observe his classroom and praised him for how he used the mathematics lessons the team created. The email was very complimentary on how respondent implemented the programs that team developed.

LEGAL CONCLUSIONS

Applicable Code Sections Regarding Dismissal Actions

1. A permanent employee may be dismissed for cause only after a dismissal hearing. (Ed. Code, §§ 44934 & 44944.)
2. Education Code section 44932 provides the grounds for dismissing a permanent employee. Subdivision (a)(1) authorizes dismissal for immoral conduct.

Subdivision (a)(4) authorizes dismissal for dishonesty. Subdivision (a)(6) authorizes dismissal for evident unfitness for service.

3. Education Code section 44944 establishes the right to a hearing, the process for selecting the three-member Commission on Professional Competence, and sets forth the Commission's authority regarding its final decision.

4. Education Code section 44938 outlines the procedures the governing board must follow before acting on any charges brought against a permanent employee.

Burden and Standard of Proof

5. The "burden of proof" means the obligation of a party, to convince the trier of fact that the existence of a fact sought to be proved is more probable than its nonexistence. (*Redevelopment Agency v. Norm's Slauson* (1985) 173 Cal.App.3d 1121, 1128.) The district has the burden of proof to establish cause to dismiss its employee.

6. The standard of proof in a teacher dismissal proceeding is a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) A preponderance of the evidence means that the evidence on one side of an issue outweighs, preponderates over, and is more than, the evidence on the other side of the issue, not necessarily in number of witnesses or quantity, but in the convincing effect the evidence has on those to whom it is addressed. In other words, the term refers to evidence that has more convincing force than that opposed to it. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

Sexual Harassment Defined by Code

7. Education Code section 212.5 defines sexual harassment. The evidence did not support a finding that respondent engaged in sexual harassment.

Applicable Board Policies, Administrative Regulations and Ethics Code

8. Board Policy Nos. 4119.21, 4119.24, 5137, 5141.4, 5145.3, Administrative Regulation No. 4118, and Code of Ethics of the Education Profession No. E 4119.21, set forth the professional standards the board expects of its employees. As noted, the board expects district employees to “maintain the highest ethical standards, behave professionally, follow district policies and regulations,” “exercise good judgment when interacting with students and other members of the school community,” and “engage in conduct that enhances the integrity of the district, advances the goals of the district’s educational programs, and contributes to a positive school climate.”

9. The district did not charge respondent with persistent violation of these policies and many were procedural policies only. The Commission found respondent violated Board Policy No. 4119.21 because he did not show good judgement. The Commission also found respondent violated Board Policy No. 4119.24 because his actions were inappropriate and undermined trust in adult-student relationships.

Relevant Judicial Authority

IMMORAL CONDUCT

10. “Immoral conduct” is conduct hostile to the welfare of the general public and is not confined to sexual matters. (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

11. There are certain professions which impose upon persons attached to them responsibilities and limitations on freedom of action, which do not exist in regard to other callings. Public officials such as judges, policemen, and schoolteachers fall into such a category. (*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, 824.)

12. "As between a teacher and his student, '(a)n important part of the education . . . is the instilling of a proper respect for authority and obedience to necessary discipline. Lessons are learned from example as well as from precept.' (Citation.) 'A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the [students] coming under [his] care and protection. . . . The teaching by example as well as precept, of obedience to properly constituted authority and discipline necessary to a well ordered society, is an important part of education.'" (*Watson v. State Bd. of Education* (1971) 22 Cal.App.3d 559, 565.)

13. "The calling of an educator is so intimate, its duties so delicate, the things in which a teacher might prove unworthy or would fail are so numerous that they are incapable of enumeration in any legislative enactment. The educator's ability to inspire children and to govern them, his power as an educator, and the character for which he stands are matters of major concern in an educator's selection and retention. . . . An educator in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the students coming under his care and protection. (Citation.)" (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1463-64.)

14. The governing board of a district is entrusted with the conduct of the schools under its jurisdiction, their standards of education, and the moral, mental, and

physical welfare of the pupils during school hours. An important part of the education of any child is the instilling of a proper respect for authority and obedience to necessary discipline. Lessons are learned from example as well as from precept. "Book learning" is only a phase of the important lessons a child should learn in a school. (*Palo Verde Unified School District of Riverside County v. Hensey* (1970) 9 Cal.App.3d 967, 970–71.)

15. Immoral conduct cannot be considered in the abstract. It must be considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public; more specifically, conduct which is hostile to the welfare of the school community. In providing standards to guide school boards in placing restraints on conduct of teachers, the Legislature is concerned with the welfare of the school community. Its objective is the protection of students from corruption. This is a proper exercise of the power of a state to abridge personal liberty and to protect larger interests. But reasonableness must be the governing criterion. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224.) The phrase "immoral conduct" within the meaning of the Education Code denotes immoral or unprofessional conduct or moral turpitude of the teacher that renders the teacher unfit to teach. (*Id.* at p. 225.)

16. The term "immoral" has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. The term "immoral conduct" has been defined to include conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. "Immoral conduct" is not confined to sexual matters. It includes an

inconsiderate attitude toward good order and the public welfare. It is sometimes synonymous with "dishonesty" or a high degree of unfairness. (*Board of Ed. of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811, noting that no other California cases had previously defined the term "immoral conduct.")

17. Rejecting statutory terms, such as "immorality," "unprofessional conduct," or "moral turpitude" as overly broad to use as grounds for discipline of public school teachers, the court in *Morrison, supra*, created a seven-part test to assess whether a misbehaving teacher is fit to teach. (*Broney v. California Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 466.) "Because terms such as 'immoral,' 'unprofessional,' or 'involving moral turpitude' are too broad and amorphous to be used as a basis for the termination of a professional license, it must be shown the conduct in question indicates an unfitness to engage in the profession." (*Id.* at pp. 473-74.)

18. Since the term "immoral conduct" is vague and broad, whether the conduct demonstrates an unfitness to teach must be measured against seven criteria set forth in *Morrison, supra*. (*Governing Board of ABC Unified School District v. Haar* (1994) 28 Cal.App.4th 369, 383.)

DISHONESTY

19. In *Fontana Unified School District v. Burman* (1988) 45 Cal.3d 208, 220, fn 12, the Supreme Court required application of the *Morrison, supra*, factors to the determination of "dishonesty." As the Court noted: "Dishonest conduct may range from the smallest fib to the most flagrant lie. Not every impropriety will constitute immoral or unprofessional conduct, and not every falsehood will constitute 'dishonesty' as a ground for discipline." (*Ibid.*)

20. In an often-cited definition, the court stated in *Hogg v. Real Estate Commissioner* (1942) 54 Cal.App.2d 712, 717:

Dishonesty necessarily includes the element of bad faith. As defined in the dictionaries and in judicial decisions, it means fraud, deception, betrayal, faithlessness. [Citations.] As put by the court in *Alsup v. State*, 91 Tex. Cr. 224, . . .
'dishonesty denotes an absence of integrity; a disposition to cheat, deceive or defraud; deceive and betray.'

EVIDENT UNFITNESS FOR SERVICE

21. The applicable standard or determinative test in teacher dismissal cases is whether the person is fit to teach. "Fitness to teach" is a question of ultimate fact. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal.App.3d 555, 560-561.)

22. "Evident" is defined as "clear to the vision and understanding." "Unfit" is defined as "not fit; not adapted to a purpose, unsuitable; incapable; incompetent; and physically or mentally unsound" and "unsuitable, incompetent and not adapted for a particular use or service." (*Palo Verde Unified School District of Riverside County v. Hensey* (1970) 9 Cal.App.3d 967, 972.)

23. In *Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, the court noted the two parallel, yet contradictory, lines of cases regarding "unfit for service." One line of cases equated that term with "unprofessional conduct" and the other line of cases distinguished the two definitions. In deciding that the latter line of cases was the correct way to evaluate "unfit to serve," and complied with the rules of statutory construction, the *Woodland*

court concluded that “unprofessional conduct” and “evident unfitness for service” do not mean precisely the same thing. Although conduct constituting “evident unfitness for service” will often constitute “unprofessional conduct,” the converse is not always true. Evident unfitness for service requires that unfitness for service be attributable to defect in temperament, which is not necessary for a finding of unprofessional conduct. Nevertheless, lower courts may not disregard the criteria for unfitness set out in *Morrison* where that court concluded that “unprofessional conduct” meant conduct showing a teacher was unfit to teach. These criteria must be analyzed to determine, as a threshold matter, whether the conduct indicates unfitness for service. If it does, the next step is to determine whether the “unfitness” is “evident”; i.e., whether the offensive conduct is caused by a defect in temperament. (*Id.* at pp.1442-1445.) A finding of “unfit to serve” can be made if the evidence, taken in the aggregate, shows that retaining the employee would pose a significant danger of psychological harm to students and fellow teachers. (*Id.* at p.1456.)

24. To establish a teacher is unfit to teach, *Morrison, supra*, requires a nexus between government employment and alleged employee misconduct stemming from the principle that “[n]o person can be denied government employment because of factors unconnected with the responsibilities of that employment.” (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1463.)

25. “Unlike ‘unprofessional conduct,’ ‘evident unfitness for service’ connotes a fixed character trait, presumably not remediable merely on receipt of notice that one’s conduct fails to meet the expectation of the employing school district.” (*San Diego Unified School District v. Commission on Professional Competence* (2013) 214 Cal.App.4th 1120, 1142-43.)

26. An employee's actions on a given day may suggest a lack of judgment and discretion, or may be an isolated act precipitated by an unusual accumulation of pressure and stress. An absence of any other incidents in the employee's teaching career suggestive of lack of judgment or discretion can further distinguish the aberrant character of the act at issue. In such a case, a fact finder could reasonably conclude that the isolated incident of poor judgment was outweighed by years of demonstrated teaching competence, and that on balance the employee possessed the qualities of character necessary for teaching fitness. (*Board of Education v. Jack M.* (1977) 19 Cal. 3d 691, 696-701.)

27. The nexus between an employee's conduct and his fitness to teach is established when the conduct is detrimental to the mission and functions of the employer. Factors to consider are whether the acts demonstrate a serious lapse in good judgment, the teacher failed to recognize the seriousness of his misconduct, the teacher attempted to shift blame to parents and students who might access his posting, his principal had lost confidence in his ability to serve as a role model based upon the posting, or, most noteworthy, the teacher's testimony that he did not think his postings would have any impact on his ability to teach his students if any of them had viewed his post and that he did not view his posting as immoral. The conduct itself, together with the teacher's failure to accept responsibility or recognize the seriousness of it, given his position as a teacher and role model, demonstrates evident unfitness to teach. (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1465-66.)

28. One act does not alone demonstrate the unfitness of the teacher, but is simply one of the factors to be considered. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal. App.3d 555, 561-62.)

29. There must be a nexus between the teacher's conduct and his usefulness to the school district and only when so construed can grounds to dismiss for immoral conduct or unfitness to serve be constitutionally applied. (*Board of Trustees v. Judge* (1975) 50 Cal. App. 3d 920, 929.)

Evaluation of the Causes for Dismissal

IMMORAL CONDUCT EVALUATION

30. Two Commission members found cause exists to dismiss respondent pursuant to Education Code section 44932, subdivision (a)(1), because complainant proved by a preponderance of the evidence that respondent engaged in immoral conduct.

31. G.C. appeared as a truthful witness and her statements were consistent. The difference between her oral statements that respondent rubbed her breast versus her written statement that he "almost touched" her breast was not enough to find her not credible, and touching her versus almost touching was irrelevant. Respondent was close enough to G.C. to make her uncomfortable. In fact, although he initially denied it, respondent demonstrated how he reviews students' work by crouching down next to them, which was what G.C. alleged he did. Further, respondent's claim that G.C. pulled down her shirt and "provoked" him not only seemed false, but also an effort to blame the victim. It was curious that in his three written statements he never made the "lower her shirt" claim, only that "her behavior upon arriving to class was odd. It was like she was trying to provoke me." His "upon arriving to class" claim was also not consistent with his testimony that G.C.'s lowered her shirt when he was walking around the classroom checking students' work.

32. Moreover, both Principal Sotelo and Assistant Principal Magana testified that G.C. reported that respondent rubbed her breast when they interviewed her on February 20, 2024. G.C.'s demeanor as described by Mr. Sampson and these two administrators, and as shown at this hearing, was consistent with one subject to inappropriate advances. On balance, G.C.'s testimony was credible and supported by the evidence, including the text messages she sent from respondent's class referring to his behavior towards her. There was no other reasonable explanation for those texts.

33. Respondent insisting G.C. came after school and that he did not make her stay after class was his attempt to explain away G.C.'s 9:50 a.m. text messages. If he admitted he kept her after class, then the text messages could only refer to him. But, by claiming she came after school, then he could argue, as he did here, that the text messages did not refer to him. However, the time of the text messages corroborated G.C.'s testimony and were a condemning piece of evidence. Further, at 9:50 a.m., G.C. would not yet be in Mr. Sampson's class to send these texts, and since he was the one in whom she confided and clearly trusted, not one who "creeped her out," the texts can only be about respondent. Moreover, it was highly doubtful any student would remain on campus after school on the Friday of a three-day holiday weekend.

34. Two members of the Commission also found that respondent making the "little calientita" comment, taking G.C.'s gloves and her other personal items without her permission, were inappropriate and constituted immoral conduct.

DISHONESTY EVALUATION

35. Cause does not exist to dismiss respondent pursuant to Education Code section 44932, subdivision (a)(4), because complainant did not prove by a preponderance of the evidence that respondent engaged in dishonesty.

36. Respondent failing to recall certain facts when interviewed is not the same as lying or knowingly misrepresenting facts. Respondent also did not know which students were making the allegations against him when interviewed, making his answers reasonable.

EVIDENTLY UNFIT FOR SERVICE EVALUATION

37. Two members of the Commission found cause exists to dismiss respondent pursuant to Education Code section 44932, subdivision (a)(6), because complainant proved by a preponderance of the evidence that respondent was evidently unfit for service.

38. Respondent's actions on February 16, 2024, and February 20, 2024, with G.C., his taking her gloves and other personal items, his admission to scaring students, and the findings regarding immoral conduct, make him unfit to serve as a teacher.

***Morrison* Factors**

39. Having found cause to discipline respondent, the issue becomes what discipline to impose. In deciding that question, the seminal case for teacher dismissals is *Morrison v. State Board of Education* (1969) 1 Cal.3d 214. The Supreme Court held that a district "cannot abstractly characterize the conduct . . . as 'immoral,' 'unprofessional,' or 'involving moral turpitude' . . . unless that conduct indicates that the [teacher] is unfit to teach." (*Id.* at p. 229.) The Supreme Court suggested seven factors to consider when evaluating whether the school employee should be dismissed:

- (1) the likelihood that the conduct adversely affected students or fellow teachers and the degree of such adversity;
- (2) the proximity or remoteness in time of the conduct;
- (3) the type of teaching certificate held by the teacher;
- (4) the existence of extenuating or aggravating circumstances and publicity, if any, surrounding the conduct;
- (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct;
- (6) the likelihood of recurrence of the questioned conduct; and
- (7) the extent that the discipline may adversely impact or have a chilling effect on the constitutional rights of the teacher.

(Ibid.)

The Supreme Court found these “factors are relevant to the extent that they assist the [district] in determining whether the teacher's fitness to teach, i.e., in determining whether the teacher's future classroom performance and overall impact on his students are likely to meet the [district's] standards. (*Id.* at pp. 229-230.) An employee can be dismissed from the teaching profession only upon a showing that his retention in the profession poses a significant danger of harm to either students,

school employees, or others who might be affected by his actions as a teacher. The inquiry is whether any adverse inferences can be drawn from the teacher's conduct as to his teaching ability, or as to the possibility that publicity surrounding the past conduct may in and of itself substantially impair his function as a teacher. (*Id.* at p. 235.) Those factors were considered in this decision.

40. The notoriety and publicity accorded the conduct may also be considered. (*Jack M., supra.*, at p. 702, footnote 5.)

41. The *Morrison* factors may be applied to the charges in the aggregate. When a camel's back is broken, the trier of fact need not weigh each straw in its load to see which one could have done the deed. A trier of fact is entitled to consider the totality of the offensive conduct. (*Woodland Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1456-1457.)

42. Only the pertinent *Morrison* factors need to be analyzed. (*Broney v. California Commission on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 476.)

43. Unprofessional conduct has been defined as conduct, measured by the *Morrison* factors, which indicates unfitness to teach. (*Board of Education v. Jack M.* (1970) 19 Cal.3d 691, 696-697; *Perez v. Commission on Professional Competence* (1983) 149 Cal.App.3d 1167, 1173-1174.)

44. Applying the pertinent *Morrison* factors to the facts here, two members of the Commission found that respondent's conduct adversely affected students or fellow teachers and cast the district in a negative light; the incidents occurred fairly recently, happening during the 2023-2024 school year; respondent acknowledged having a student alone in the classroom was improper, especially with the doors closed; respondent was on notice not to touch students and to act professionally

towards them but even by his own admissions, he continued to “tap” students in his classroom and tell jokes; it is likely respondent’s behavior will recur as he scared G.C. the next time he saw her after the February 16, 2024, incident and admitted to scaring other students and making jokes; and disciplining respondent on the facts presented here will not adversely impact or have a chilling effect on the constitutional rights of other teachers in the district.

Other Disciplinary Considerations

45. An administrator’s loss of confidence in the educator and doubt regarding the educator’s ability to serve as a role model for students are factors that may be considered. (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1460.)

46. The Commission is vested with discretion not to dismiss an employee even if grounds for discipline exist. (*Fontana Unified School District v. Burman* (1988) 45 Cal.3d 209.)

Commission’s Determination

47. Having found respondent engaged in immoral conduct and evidently unfit for service, and considering the case law and applicable *Morrison* factors, two members of the Commission determined that cause exists to dismiss respondent from employment in the district.

ORDER

Respondent's appeal of his dismissal from employment with Coachella Valley Unified School District is denied. The district's request to dismiss respondent is granted. Respondent shall be dismissed from employment with the district.

DATE: 06/09/2025

Kate Keener

Kate Keener (Jun 9, 2025 10:27 PDT)

KATE KEENER

Commission Member

DATE: 06/09/2025

Mary Agnes Matyszewski

Mary Agnes Matyszewski (Jun 9, 2025 11:48 PDT)

MARY AGNES MATYSZEWSKI

Administrative Law Judge

Office of Administrative Hearings

Dissent of Amar Samet

I dissent to the Commission's conclusions that cause exists to dismiss respondent pursuant to Education Code section 44932, subdivisions (a)(1), immoral conduct, or (a)(6), evident unfitness to teach. I dissent to the Commission's conclusion that cause exists to dismiss respondent.

While it was clear that something happened between respondent and G.C. that made her uncomfortable and caused her to report respondent's behavior to the district, immoral conduct was not shown. Since respondent was monitoring G.C. taking an exam, he would have to watch her. There was also a discrepancy as to when the incident occurred and it was unclear why respondent insisted it happened at the end

of the day, yet G.C. insisted it happened after class. As to the February 20, 2024, scaring incident, there was not enough evidence to find respondent's explanation not credible. Respondent was trying to engage students, and while doing so by scaring them showed a lack of judgment, his actions were not sufficient to dismiss him from employment. Taking G.C.'s gloves and making the "little calientita" comment also did not rise to the level of constituting immoral conduct.

Respondent has an excellent educational background and teachers with his mathematics training and credentials are difficult to find, especially in districts like Coachella Valley Unified School District. There was no evidence that respondent has a fixed character trait making him unfit to serve, and respondent agreed to undergo additional training to improve his teaching skills.

When applying the *Morrison* factors, I find that respondent has an excellent educational background which is sorely needed, and he should be allowed to remain a teacher in the district. I disagree it is likely respondent's conduct will recur as he now recognizes the error of making jokes, scaring students, or being alone with students. I think dismissing respondent on these facts, including his willingness to change and undergo additional training, will adversely impact or have a chilling effect on the constitutional rights of other teachers.

DATE: 06/09/2025


Amar Samet (Jun 9, 2025 11:07 PDT)
AMAR SAMET
Commission Member